

24STCV30286 24STCV30286

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C513%2C07%2F16%2F2026

Source SHA-256: 306a97d3445a9b6c78ee2722fe7b31b086a05461cb348c2411a7e682fb3c5e36

Case Number: 24STCV30286 Hearing Date: July 16, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

EINRIDE US INC.

, et al.;

Plaintiffs,

vs.

MAERSK, A/S

, et al.;

Defendants.

Case

No.:

24STCV30286

Hearing

Date:

July
16, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

plaintiffs/cross-defendants einride us inc.,
einride inc., and einride ab's motion to seal portions of demurrer to the
cross-complaint and exhibits 1-6 of the supporting smith declaration

MOVING PARTY: Plaintiffs/Cross-Defendants

Einride US Inc., Einride Inc., and Einride AB

RESPONDING PARTY: Unopposed

Motion to Seal Portions of Demurrer to the Cross-Complaint and Exhibits
1-6

The court
considered the moving papers filed in connection with this motion. No
opposition has been received.

DISCUSSION

Plaintiffs and cross-defendants Einride US Inc., Einride Inc., and
Einride AB ("Cross-Defendants") move the court for an order sealing portions of
Cross-Defendants' demurrer to cross-complainants Maersk, A/S and Maersk
Logistics & Services USA Inc.'s Cross-Complaint.

Generally, court records are presumed to be open unless
confidentiality is required by law.¿ (Cal. Rules of Court, rule 2.550, subd.
(c).)¿ If the presumption of access applies, the court may order that a
record be filed under seal "if it expressly finds facts that establish: (1)
There exists an overriding interest that overcomes the right of public access
to the record; (2) The overriding interest supports sealing the record; (3) A

substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550, subd. (d).) “[T]he party seeking to seal documents, or maintain them under seal, must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them.” (HB Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894.)

The court finds that Cross-Defendants have shown that (1) there exists an overriding interest that overcomes the right of public access to the portions of the cross-complaint set forth above because they (i) describe or relate to confidential contractual terms, and (ii) include similar information that this court has sealed in connection with the complaints, the demurrer, and the opposition to the demurrer in this action, (2) the overriding interest in keeping this information confidential supports sealing the record, (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed, (4) the proposed sealing is narrowly tailored since Defendants request that the court seal only commercially sensitive contents of the demurrer to the cross-complaint, and (5) no less restrictive means exist to achieve the overriding interest. (Motion, pp. 5:9-7:22; Smith Decl., ¶¶ 2-13.) (Universal City Studios, Inc. v. Superior Court, supra, 110 Cal.App.4th 1273, 1279.) Thus, the court grants Cross-Defendants' motion to seal.

ORDER

The court grants plaintiffs and cross-defendants Einride US Inc., Einride Inc., and Einride AB's motion to seal portions of the demurrer to the cross-complaint and exhibits 1-6.

Pursuant to California Rules of Court, rule 2.551, subdivision (e), the court directs the clerk to file this order, maintain the records ordered sealed in a secure manner, and clearly identify the records as sealed by this order.

The court orders cross-defendants Einride US Inc., Einride Inc., and Einride AB to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 16, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court